Statement of Environmental Effects

Proposed Change of Use and Strata Subdivision

4 Gardiner Road, Goulburn NSW

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V1.0

Contents

1. Introduction 3
2. The Site 3
3. Planning History 4
4. The Proposal 4
5. Statutory Context 5
6. Planning Assessment 6
6.1. Matters for Consideration 6
6.2 Environmental Planning Instruments 7
6.3 Draft Environmental Planning Instruments 9
6.4 Goulburn Mulwaree Development Control Plan 2009 9
6.5 Planning Agreements 12
6.6 Regulations 12
7. Likely Impacts 12
8. Suitability of the Site 13
9. Submissions 13
10. The Public Interest 13
11. Conclusion 13

Appendix 1: Mapping package

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1. Introduction

Upside Planning Pty Ltd has prepared this Statement of Environmental Effects on behalf of the landowners to assist Goulburn Mulwaree Council in its consideration of the proposal under the *Environmental Planning and Assessment Act 1979* (EP&A Act).

The application site is known as 4 Gardiner Road, Goulburn.

The development application seeks consent for a change of use from a dwelling and secondary dwelling to a detached dual occupancy and the associated strata subdivision.

The land is zoned R2 – Low Density Residential under the Goulburn Mulwaree Local Environmental Plan 2009.

This report has been prepared in accordance with the requirements of the Environmental Planning and Assessment Regulation 2021.

2. The Site

Site Description

The application site is located within the established residential area of Goulburn, in New South Wales.

The application site is legally known as Lot 44 DP 1194537, and is addressed as 4 Gardiner Road, Goulburn.

The site has an area of approximately 722 m² and is developed with two detached single-storey dwellings constructed under a Complying Development Certificate, comprising a principal dwelling and a secondary dwelling. Vehicular access and on-site garaging are provided from Gardiner Road.

Figure 1 provides a site location plan.
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Figure 1: Site location

3. Planning History

On 2 September 2015, a Complying Development Certificate (CDC No. 66/15) was issued by a private certifier for the construction of a single-storey dwelling and a detached secondary dwelling on the subject land.

The approval was granted under the complying development provisions of the applicable State Environmental Planning Policy and did not require development consent.

The development was constructed in accordance with the approved plans issued under the Complying Development Certificate, and both dwellings were subsequently occupied following certification.

Each dwelling is connected to reticulated water, sewer and electricity services, with service locations (including electricity metering and NBN infrastructure) shown on the approved servicing plan.

4. The Proposal

The proposed development seeks consent for:

- a change of use from a dwelling and secondary dwelling to a detached dual occupancy
- the associated strata subdivision of the land.

This Statement of Environmental Effects should be read in conjunction with the draft strata plan and the servicing plan prepared by TSD Surveying, which accompany the development application.

Change of use

The proposal seeks a change of use to a detached dual occupancy. No physical works are proposed.

Both dwellings are fully self-contained and operate independently, with separate habitable spaces, kitchens, bathrooms and laundry facilities, and no physical, functional or servicing reliance between them. Neither dwelling is subordinate to the other in scale, function or use.

The proposed change of use does not result in any increase in residential density, built form or development yield and maintains the established residential pattern of the site and locality.

Strata Subdivision

The proposal includes the strata subdivision of the land into two strata lots.

Proposed Lot 1 has an area of approximately 357 m² and contains an existing detached single-storey dwelling with an associated porch, garage, and private courtyard, as shown on the accompanying draft strata plan.

Proposed Lot 2 has an area of approximately 317 m² and contains an existing detached single-storey dwelling with associated porch, garage and private courtyard areas, as shown on the accompanying draft strata plan.

The draft strata plan identifies areas of common property associated with the shared driveway/access, as shown on the draft strata plan.

The strata subdivision does not involve any physical works, alterations to the built form, or changes to access or servicing arrangements.

National Construction Code

Both dwellings are fully detached and operate independently as Class 1a buildings. The proposal does not involve any building works or alterations and does not trigger any additional requirements under the National Construction Code beyond those already satisfied by the existing approved development.

5. Statutory Context

Environmental Planning & Assessment Act 1979

The EP&A Act and its associated regulations and environmental planning instruments set the framework for NSW's development assessment. Development assessment provisions are contained in Part 4 of the EP&A Act.

Integrated Development

The proposal is not integrated development.

Other Statutory Requirements

In addition to the Environmental Planning and Assessment Act 1979, other statutory requirements apply to the proposal.

The requirements for the development application are set out in Table 1 below.

Table 1: Other Statutory Requirements

Act	Requirements
Roads Act 1993	The objectives of the Roads Act 1993 include regulating works and activities in public road reserves. Driveways are in place. Therefore, an application under Section 138 is not required.
Heritage Act 1977	The Heritage Act 1977 provides for the protection, conservation, registration, and promotion of items of state heritage significance. The site does not contain a state-listed item or is not within a state-listed conservation area.
Strata Schemes Development Act 2015	The accompanying draft strata plan prepared by TSD Surveying, together with the related administration sheet, has been prepared in accordance with the requirements of the *Strata Schemes Development Act 2015* and forms part of the development application.

6. Planning Assessment

6.1. Matters for Consideration

Section 4.15 'Evaluation' of the Environmental Planning and Assessment Act advises the following matters as are of relevance to the consideration of a development application:

"(a) the provisions of:

(i) any environmental planning instrument, and

(ii) any proposed instrument that is or has been the subject of public consultation under this Act and that has been notified to the consent authority (unless the Planning Secretary has notified the consent authority that the making of the proposed instrument has been deferred indefinitely or has not been approved), and

(iii) any development control plan, and

(iiia) any planning agreement

(iv) the regulations (to the extent that they prescribe matters for the purposes of this paragraph),

(b) the likely impacts of that development, including environmental impacts on both the natural and built environments, and social and economic impacts on the locality,

(c) the suitability of the site for development,

(d) any submissions made in accordance with this Act or the regulations,

(e) the public interest."

6.2 Environmental Planning Instruments

Consideration of the applicable instruments is presented in the set out below.

Goulburn Mulwaree Local Environmental Plan 2009

The site sits within land zoned 'R2 - Low Density Residential under the Goulburn Mulwaree Local Environmental Plan 2009.

The mapping package in Appendix 1 illustrates the relevant statutory context of the site.

The proposed development seeks consent for a change of use from a dwelling and detached secondary dwelling to a detached dual occupancy, and the associated strata subdivision, which is permissible with consent in the R2 zone.

Objectives of the zone

The stated objectives of the zone are:

- *"To provide for the housing needs of the community within a low density residential environment.*
- *To enable other land uses that provide facilities or services to meet the day to day needs of residents.*
- *To ensure new development complements the scale, density and form of existing development.*
- *To encourage development that is consistent with the low density amenity of existing and future residents.*
- *To encourage development that is designed to recognise the bushland character of the locality, where appropriate, and to minimise the impact of urban development, particularly on the edge of the urban area."*

The proposal is consistent with the objectives of the R2 – Low Density Residential zone. The development utilises an existing lawful residential built form, does not increase development density or building scale, and maintains the established low density residential character of the locality.

The proposal facilitates the orderly use of land for residential purposes while ensuring that amenity impacts on adjoining properties and the surrounding area are not increased.

Clause 4.1 Minimum subdivision lot size

Because of clause 4.1(4), this clause does not apply to the subdivision of land by the registration of a strata plan of subdivision under the *Strata Schemes Development Act 2015*.

Accordingly, Clause 4.1 is not applicable to the proposed strata subdivision.

Clause 4.1C Minimum lot sizes for dual occupancies

The objective of Clause 4.1C is to achieve planned residential density.

The minimum lot size for a detached dual occupancy is 600 m².

The subject site has a total area exceeding 600 m² and therefore satisfies the minimum site area requirement for a detached dual occupancy under this clause.

5.10 Heritage Conservation

Clause 5.10 of the *Goulburn Mulwaree Local Environmental Plan 2009* relates to the conservation of environmental heritage, including heritage items, heritage conservation areas and archaeological sites.

The subject site is not identified as containing a heritage item and is not located within a heritage conservation area under the LEP.

Accordingly, the proposal will not result in any adverse impacts on heritage values and Clause 5.10 is satisfied.

Clause 5.21 – Flood Planning

Clause 5.21 aims to minimise flood risk to life and property. In assessing the proposal:

a) *the subject land is not identified as being within a Flood Planning Area on Council's Flood Planning Map;*
b) *no physical works or alterations to site levels are proposed; and*
c) *existing drainage arrangements remain unchanged.*

On this basis, the proposal does not give rise to any flood-related impacts and satisfies the requirements of Clause 5.21.

Clause 7.1A – Earthworks

Clause 7.1A seeks to ensure that earthworks do not adversely impact land stability or drainage. In this instance:

a) *no earthworks, excavation, filling, or soil disturbance are proposed.*
b) *all site levels and infrastructure are existing and approved; and*
c) *no changes to drainage patterns or environmental functions will occur.*

The proposal, therefore, satisfies the requirements of Clause 7.1A.

7.12 Essential services

Clause 7.12 states that "*Development consent must not be granted to development unless the consent authority is satisfied that any of the following services that are essential for the development are available or that adequate arrangements have been made to make them available when required—*

(a) the supply of water,
(b) the supply of electricity,
(c) the disposal and management of sewage,
(d) stormwater drainage or on-site conservation,

(e) suitable vehicular access.

The subject site is connected to reticulated water, sewer and electricity services. Each dwelling is provided with an independent electricity connection. Water is supplied via a main meter with individual sub-meters provided for each dwelling.

Stormwater from the site is connected to the Council's stormwater drainage system.

Vehicular access to each dwelling is provided via the existing access arrangements, with no changes proposed as part of the development.

Each dwelling functions independently as a Class 1a building for the purposes of the National Construction Code, with no shared internal spaces, service dependencies, or fire safety reliance between buildings. The proposal does not require any upgrades or alterations to the approved built form to achieve compliance.

The existing dwellings were constructed in accordance with the conditions of Complying Development Certificate No. 66/15, including the installation of rainwater tanks, and these arrangements remain unchanged.

6.3 Draft Environmental Planning Instruments

There are no draft planning instruments in place that relate to the proposal.

6.4 Goulburn Mulwaree Development Control Plan 2009

The proposal has been assessed against the relevant controls of the Goulburn Mulwaree Development Control Plan (DCP) 2009.

The change of use from a dwelling with a secondary dwelling to a detached dual occupancy does not:

- Increase dwelling yield,
- Alter built form, or
- Intensify site impacts.
-

The proposal changes the use of the existing development and enables lawful strata subdivision.

Part 4 – Principal Development Controls - Urban

Table 2: Assessment of relevant controls of Part 4 of the Goulburn Mulwaree Development Control Plan 2009.

DCP Objectives and Control	Response
4.1.1 Minimum Site Area – R1 General Residential and R2 Low Density Residential <u>Control:</u> R1 General Residential and R2 Low Density Residential – 350 m² per dwelling unit.	The submitted strata plan identifies two proposed strata lots with the following approximate areas: • Lot 1: 357 m² • Lot 2: 317 m² Lot 1 satisfies the minimum site area requirement of 350 m² per dwelling unit.

	Lot 2 does not meet the numeric minimum, being approximately 33 m² below the prescribed standard. The objective of the minimum lot size control is to ensure each dwelling has adequate area to accommodate the built form, private open space, servicing and residential amenity. Notwithstanding the numeric non-compliance for Lot 2: • Each dwelling is fully detached and contained within its own lot. • Each lot contains defined and functional private courtyard areas (CY) wholly within the lot boundaries. • There is no reliance on common property for private open space. • Services are available and clearly identified for each dwelling. • The built form already exists and is not intensified by the proposal. • Accordingly, while the numeric standard is not met for Lot 2, the underlying objective of the control is achieved.
4.1.5 Dwelling design <u>Control:</u> Development is to be compatible with the existing and desired future character of the area and maintain appropriate residential density.	The proposal does not introduce additional dwellings beyond those already constructed and approved. The two dwellings are single-storey, detached and consistent in scale, form and density with surrounding residential development along Gardiner Road. Complies
4.1.6 Number of Storeys <u>Control:</u> Development should generally be limited in height and number of storeys to maintain residential character and amenity.	Both dwellings are single-storey, as shown on the submitted plans. The proposal does not involve any additional building height or bulk. Complies
4.1.8 Privacy <u>Control:</u> Development must minimise unreasonable overlooking and maintain an acceptable level of visual privacy between dwellings and adjoining properties.	The dwellings are detached and separated, with private open space areas oriented within each lot. The arrangement limits direct overlooking between dwellings and adjoining properties.

4.1.9 Private Open Space <u>Control:</u> Each dwelling must be provided with usable private open space suitable for outdoor living and recreation.	Each dwelling is provided with ground-level private open space in the form of a dedicated courtyard directly accessible from habitable rooms. Proposed Lot 1 (≈357 m²) and Proposed Lot 2 (≈317 m²) each provide private open space in excess of 75 m², configured as a single contiguous area and satisfying the minimum dimensional requirements as demonstrated on the accompanying Draft Strata Plan. No changes to the approved private open space areas are proposed as part of the application. Complies.
4.1.10 Setbacks **Control:** Front, side and rear setbacks are to be consistent with the existing streetscape and provide reasonable separation between buildings. Rear: 6 metres Sides: 1 metre Front: 4.5 metres	The proposal does not involve any new built form, additions or alterations to the existing dwellings. The existing development exhibits front, side and rear setbacks consistent with the established streetscape and residential amenity of the locality. As the strata subdivision does not alter the physical siting of the buildings, the objectives of Control 4.1.10 are satisfied.
4.1.12 Traffic safety and management <u>Control:</u> Access arrangements to be safe and functional.	The existing driveway and access arrangements were lawfully approved under CDC No. 66/15 and are retained. No changes to access, manoeuvring or safety conditions are proposed. Complies.
4.1.19 Subdivision <u>Control:</u> Subdivision design must result in lots that are functional, capable of independent occupation and appropriately serviced.	Each strata lot contains: • A complete dwelling, • Defined private open space, • Associated services. Common property is limited primarily to shared service infrastructure, with buildings and courtyards forming part of the individual lots. The submitted servicing plan identifies water meters, electricity meters, NBN infrastructure and sewer connections servicing the development. Any service lines servicing more than one lot are identified as common property. The subdivision does not: • Increase the number of dwellings, • Alter the approved built form, • Introduce additional site impacts, or • Result in unreasonable amenity impacts for future occupants or adjoining properties. Complies

With regard to car parking, controls 3.6.1–3.6.2 apply. The objectives are

- To ensure that the layout and design of on-site parking and servicing areas do not detract from the amenity of adjoining areas.
- To ensure parking and servicing areas are efficient, safe and convenient to use.
- To minimise nuisance caused by traffic movement and servicing.

The control requires that the layout and design of access, parking and servicing areas provide safe and efficient vehicle access and manoeuvring while respecting residential amenity and streetscape character.

The existing driveway and on-site parking arrangement was lawfully approved and provides safe and efficient access and manoeuvring for both dwellings.

The front dwelling is provided with one internal garage space and one hardstand space, while the rear dwelling is provided with one internal garage space and one tandem hardstand space. As the proposal does not alter the existing parking layout and provides the required number of spaces for each dwelling, the car parking controls are satisfied.

6.5 Planning Agreements

No known Planning Agreements apply to the proposed development or subject site.

Any easements, rights of access or restrictions required to facilitate the proposed strata subdivision will be addressed at the subdivision certification and registration stage, including by way of a Section 88B Instrument, where applicable.

6.6 Regulations

The development application has been prepared having regard to the Environmental Planning and Assessment Regulation 2021 and is accompanied by the required plans, reports, and supporting documentation relevant to the proposed development.

The development application has been made in accordance with the requirements of the Environmental Planning and Assessment Regulation 2021.

No additional matters are prescribed by the Regulations that materially affect the assessment of this no-works change of use and strata subdivision application.

7. Likely Impacts

The proposal does not involve any physical works, alterations to the existing built form, or changes to the approved development footprint. The existing subdivision pattern and residential character of the locality are retained.

As the proposal is administrative in nature and formalises an existing lawful development, it does not give rise to any adverse environmental, social, or economic impacts.

8. Suitability of the Site

The preceding sections of this report demonstrate that the subject site is suitable for the proposed development.

The site is already developed for residential purposes and is appropriately serviced.

The land is located within the Sydney Drinking Water Catchment. No work is proposed. Existing reticulated sewer and stormwater arrangements remain unchanged, and the proposal is considered impact-neutral in this regard.

9. Submissions

In accordance with the Council's Notification Policy, the consent authority is required to consider any submissions received during the public notification period. Any submissions received will be addressed by the consent authority as part of its determination of the application.

10. The Public Interest

The proposal is considered to be in the public interest, as it formalises an existing lawful residential development without increasing density, altering the built form, or generating adverse impacts.

The development is consistent with the orderly and economic use of land and the objectives of the applicable planning controls.

11. Conclusion

The proposed development has been assessed having regard to Section 4.15 of the Environmental Planning and Assessment Act 1979, together with the relevant environmental planning instruments and applicable controls.

This Statement of Environmental Effects has demonstrated that the proposal is consistent with the statutory planning framework and satisfies the relevant provisions of the Goulburn Mulwaree Local Environmental Plan 2009 and the Goulburn Mulwaree Development Control Plan 2009.

Having regard to the environmental, economic, and social considerations, the proposal is considered to have planning merit for the following reasons:

- The proposal is permissible with consent within the R2 Low Density Residential zone and is consistent with the objectives of the zone.
- The proposal satisfies the minimum site area requirements applicable to a detached dual occupancy.
- The proposal formalises an existing lawful development and maintains the established subdivision pattern and residential character of the locality.
- The proposal involves no physical works, does not increase development intensity, and does not give rise to adverse amenity, environmental, or servicing impacts.

On this basis, the proposal is considered to represent the orderly and economic use of land and to be in the public interest.

Accordingly, it is respectfully submitted that development consent should be granted for the proposed development.
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Appendix 1

Mapping Package

GDA 2020 MGA 55 Source: NSW Spatial Services; Google Satellite 2026

Bushfire Prone Land

4 Gardiner Road, Goulburn

31-01-2026

Legend

- Site
- Lot
- Road

Bushfire Prone Land

- Vegetation Buffer
- Vegetation Category 3

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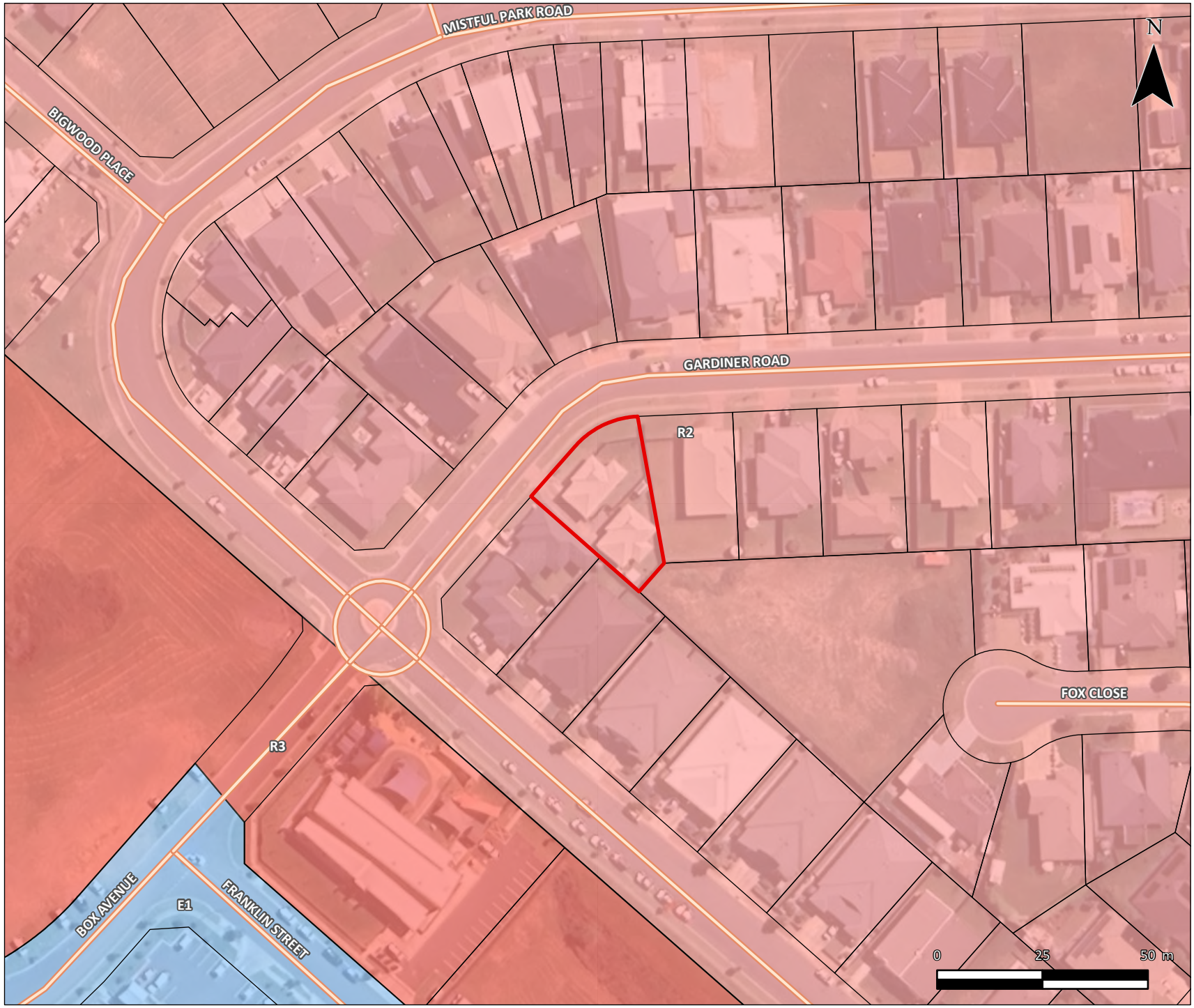

GDA 2020 MGA 55 Source: NSW Spatial Services; Google Satellite 2026

Land Zoning

4 Gardiner Road, Goulburn

31-01-2026

Legend

- Site
- Lot
- Road

Land Zoning Map

- E1
- R2
- R3

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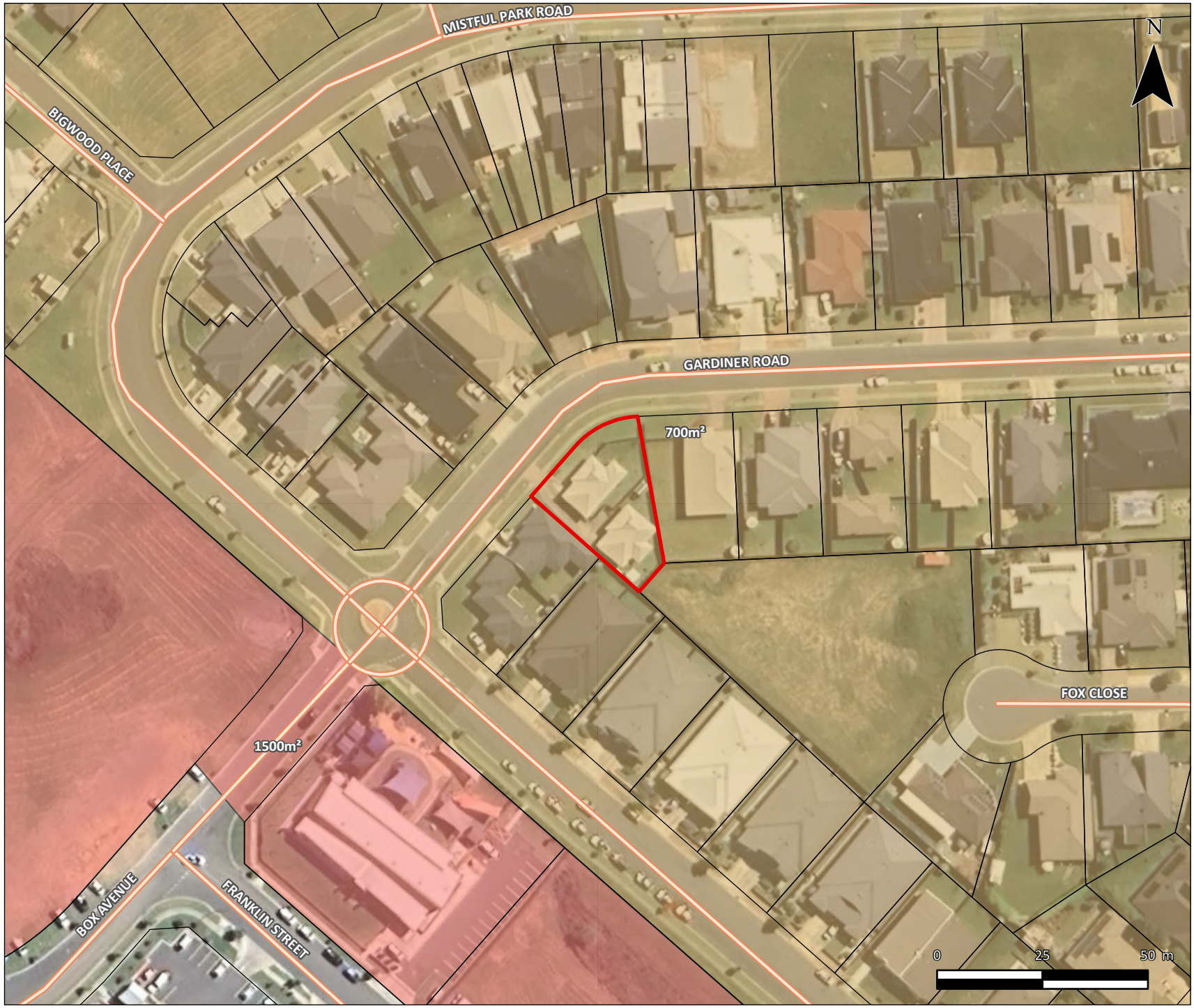

GDA 2020 MGA 55 Source: NSW Spatial Services; Google Satellite 2026

Minimum Lot Size

4 Gardiner Road, Goulburn
31-01-2026

Legend

- Site
- Lot
- Road

Minimum Lot Size

- 700m²
- 1500m²

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Site

4 Gardiner Road, Goulburn

31-01-2026

Legend

- Site
- Lot
- Road

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